

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

KEMBA MASON,**Plaintiff,****-against-****INDEX #:****Date Filed: 4-10-14**

Plaintiff designates

KINGS

County as place of Trial

The basis of venue is

Situs of Occurrence

**SUMMONS WITH
VERIFIED COMPLAINT**

**THE CITY OF NEW YORK, P.O. JAMAAL MILLER
(Possible Shield # 18339) P.O. "JOHN DOE HO"
(Shield # 11741), and P.O. "JOHN DOE" (Shield # unknown),
said name being fictitious and unknown, said person intended
being police officers and/or personnel who were involved in the
false arrest, assault, malicious prosecution and imprisonment
of the plaintiff herein,**

Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: April 10, 2014

Lee Michael Huttner

LEE MICHAEL HUTTNER, ESQ.

Attorneys & Counselors At Law

Attorneys for Plaintiff

Office and Post Office Address

150 Broadway, Suite 1007

New York, New York 10038

(646) 467-9700

Notice: The object of this action is
to recover for personal injury and/or
loss of services due to defendant(s)
negligence.

The relief sought is **Monetary Damages**.

Upon your failure to appear, judgment will be taken against you by default for an amount which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction and which warrants the jurisdiction of this Court with interest from **DECEMBER 3, 2013**, including the costs of this action.

DEFENDANTS' ADDRESSES**THE CITY OF NEW YORK, 100 Church Street, New York, New York 10007**

PO JAMAAL MILLER, c/o The City of NY
PO "JOHN DOE HO", c/o The City of NY
PO "JOHN DOE" c/o The City of NY

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
KEMBA MASON,

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

Index #:

**THE CITY OF NEW YORK, P.O. JAMAAL MILLER
(Possible Shield # 18339) P.O. "JOHN DOE HO"
(Shield # 11741), and P.O. "JOHN DOE" (Shield # unknown),
said name being fictitious and unknown, said person intended
being police officers and/or personnel who were involved in the
false arrest, assault, malicious prosecution and imprisonment
of the plaintiff herein,**

Defendants.

-----X

Plaintiff, KEMBA MASON, complaining of the defendants by his attorney, LEE MICHAEL HUITTNER, ESQ., upon information and belief, respectfully alleges:

1. At all times hereinafter mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
2. That upon information and belief, THE CITY OF NEW YORK, (hereinafter referred to as "The City"), is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That upon information and belief, defendant THE CITY OF NEW YORK, operated, managed, maintained, supervised and controlled a police department as part of and in conjunction with its municipal functions.
4. That at all times relevant hereto, defendant PO JAMAAL MILLER (Possible Shield # 18339), was employed as a Police Officer in the Police Department of the City of New York.
5. That at all times relevant hereto, defendant PO JAMAAL MILLER (Possible Shield # 18339) was, upon information and belief, assigned to the 79th Precinct, located in Brooklyn, New York.

6. That at all times relevant hereto, defendant PO “JOHN DOE HO” (Shield # 11741), was employed as a Police Officer in the Police Department of the City of New York.

7. That at all times relevant hereto, defendant PO “JOHN DOE HO” (Shield # 11741) was, upon information and belief, assigned to the 79th Precinct, located in Brooklyn, New York.

8. That at all times relevant hereto, defendant P.O. “JOHN DOE” was employed as a police officer in the Police Department of the City of New York.

9. That at all times relevant hereto, defendant P.O. “JOHN DOE” was, upon information and belief, assigned to the 79th Precinct, located in Brooklyn, New York.

10. That the occurrence, which gave rise to the commencement of this action, took place in the County of Kings, City and State of New York.

11. That all of the conditions precedent to the commencement of an action against defendant CITY OF NEW YORK, PO JAMAAL MILLER, PO “JOHN DOE HO”, and PO “JOHN DOE” have been met in that a Notice of Claim was filed with THE CITY OF NEW YORK on February 6, 2014, and within 90 days of the accrual of this cause of action; more than thirty (30) days have elapsed since the presentation of the Notice of Claim, and the Claim remains unadjusted by the CITY OF NEW YORK. This action has been commenced within one (1) year and ninety (90) days from the accrual of this cause of action, and the CITY OF NEW YORK conducted a statutory hearing of the plaintiff KEMBA MASON on April 10, 2014.

FIRST CAUSE OF ACTION:
(POLICY OF NON-FEASANCE IN THE
PROTECTION OF PLAINTIFF’S CIVIL RIGHTS)

12. At all times relevant hereto, defendant CITY OF NEW YORK employed the defendants P.O. JAMAAL MILLER, P.O. “JOHN DOE HO” and P.O. “JOHN DOE”) as police officers in the New York City Police Department.

13. Upon information and belief, defendant P.O. JAMAAL MILLER and P.O. “JOHN DOE

HO” are graduates of the Police Academy of the City of New York.

14. At all times relevant hereto, defendant CITY OF NEW YORK employed the defendant P.O. “JOHN DOE” as a police officer in the New York City Police Department.

15. Upon information and belief, defendant P.O. “JOHN DOE” is a graduate of the Police Academy of the City of New York.

16. At all times relevant hereto, defendant CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and patrol levels, the defendant officers in the protection of the Constitutional rights of the Plaintiff under the Fourteenth Amendment to the United States Constitution.

17. In addition, the defendant CITY OF NEW YORK, had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, Precinct and patrol levels, the defendant officers to conform their conduct to a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.

18. Each and all of the acts of the defendants alleged herein were done by the defendants, their agents, servants and/or employees, and each of them, not as individuals, but under color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York, and the County of New York, and under the authority of their office as police officers of said state, city and county.

19. The defendant CITY OF NEW YORK failed to competently and sufficiently hire, train and retain within the defendant officers to conform and conduct themselves to a statute established by law for the protection of citizens, such as the plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.

20. That on or about December 3, 2013, and prior thereto, the CITY OF NEW YORK, in violation of 42 USC Section 1983 caused plaintiff to be injured and damaged in failing to competently hire, train, and retain police officers, including the defendant officers to conform their conduct to a statute and a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly and/or negligently inflict injuries to citizens such as the plaintiff herein.

21. That on or about December 3, 2013, plaintiff KEMBA MASON, was lawfully and properly present in the vicinity of 443 West 27th Street, New York, New York.

22. That on or about December 3, 2013, the defendants P.O. JAMAAL MILLER, P.O. "JOHN DOE HO" and P.O. "JOHN DOE" were present and on duty in the vicinity of 45 Madison Street, Brooklyn, New York, as part of their regular and official employment as police officers for the defendant CITY OF NEW YORK.

23. Commencing on December 3, 2013, at approximately 11:30 AM, the individual defendant officers, assaulted and battered and wrongfully and falsely arrested, detained, and confined the plaintiff KEMBA MASON, without probable or just cause, grounds or provocation.

24. Following said assault, battery and arrest, the defendant officers wrongfully detained and arrested the plaintiff KEMBA MASON at the 79th Precinct, central booking and Criminal Court and imprisoned him.

25. Immediately thereafter, aforementioned defendants, their agents, servants, and/or employees falsely arrested and imprisoned plaintiff and deprived him of his rights and liberties as set forth in the Constitutions of the United States and the State of New York, unreasonably handcuffed him and threatened plaintiff with the use of further physical force.

26. Following said arrest, the defendant officers wrongfully and falsely accused and charged the plaintiff KEMBA MASON with violations of Penal Law sections 205.30, 240.20, 110-120.00 and 240.26.

27. The false arrest and imprisonment of the plaintiff KEMBA MASON was caused by all of the defendants, their agents, servants and/or employees, without warrant, authority of law, or any reasonable cause or belief that he was, in fact, guilty of the crimes with which he was charged.

28. As a result of the aforesaid arrest, plaintiff KEMBA MASON was forcibly hand-cuffed, detained, transported and treated as a common criminal and incarcerated and imprisoned at various facilities owned, operated, maintained, and controlled by the defendant CITY OF NEW YORK for approximately eighteen hours and thereby deprived of his rights, liberties and freedoms under color of State Law in violation of 42 U.S.C. Section 1983.

29. As a further result of deprivation of plaintiff KEMBA MASON's rights to be free from deprivation of rights guaranteed to him by the Fourteenth Amendment to the United States Constitution, he was caused to suffer injury both mentally and physically, severe nervous shock and emotional distress and illness.

30. That on or about December 3, 2013, in violation of the rights, privileges and immunities guaranteed to him under the Fourteenth Amendment to the United States Constitution and under color of State Law, the defendant officers and each of them acting individually and in concert, in violation of 42 U.S.C. Section 1983, while on duty, detained the plaintiff, even though defendants knew or should have known that the plaintiff was wholly innocent.

31. That all of the actions of the defendants, their agents, servants and/or employees were committed with the intention to cause bodily and mental injury to the plaintiff; to arrest, detain, restrain and imprison the plaintiff without her consent; that the plaintiff was at all times conscious and aware of his arrest, did not consent to the assault, battery and false arrest, and the assault, battery, false arrest and imprisonment were not otherwise privileged.

32. The assault, battery, arrest and imprisonment of the plaintiff were not justified by probable cause or other legal privilege and the defendants, their agents, servants and/or employees acting under

color of statute, ordinances, regulations, customs and usages of the State and City of New York and County of New York, and under the authority of their office as police officers for the CITY OF NEW YORK falsely charged the plaintiff with violations of Penal Law sections 205.30, 240.20, 110-120.00 and 240.26. although the defendants, acting in such capacity, knew that such charges were false.

33. That the defendants, their agents, servants and/or employees failed to adequately hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the defendants, their agents, servants and/or employees; that in their hiring practices in the exercise of their police functions and their failure to enforce the laws of the State and City of New York is evidence of the reckless lack of cautious regard for the rights of the public, including plaintiff; and that the defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of defendants.

34. That the defendant THE CITY OF NEW YORK, its agents, servants and/or employees failed to adequately hire, retain, train, supervise, discipline or in any other way control the defendant officers in the exercise of their functions; that their failure to enforce the laws of the State and City of New York is and was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to citizens of the State and City of New York, including plaintiff herein.

35. That the said prosecution and criminal charges and hearings instituted and procured by the defendants, their agents, servants and/or employees were unlawful and malicious and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the legal proceedings by the defendants against plaintiff was without probable cause with actual malice and terminated in favor of plaintiff on certain charges.

36. That on or about December 3, 2013, at approximately 11:30 AM of that day, while plaintiff was lawfully and properly in the vicinity of 45 Madison Street, Brooklyn, New York, and at subsequent

times thereafter, including but not limited to outside the aforesaid premises, in a patrol car, in the 79th Precinct, central booking, and at a detention cell at the Criminal Courts building, County of Kings, State and City of New York, the defendants, their agents, servants and/or employees maliciously assaulted, prosecuted and detained plaintiff KEMBA MASON, without any just grounds therefor.

37. That the plaintiff was and is wholly innocent and was forced by the defendants to submit to court proceedings.

38. The defendants, their agents, servants and/or employees, falsely and maliciously and without probable cause or provocation charged the plaintiff with the crimes aforesaid.

39. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees, unlawfully and maliciously and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against plaintiff was without probable cause, with actual malice and was terminated in favor of the plaintiff.

40. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to ridicule and scorn, was injured in his character and reputation, was prevented from attending his usual business and vocation, was injured in his reputation in the community and at his employment and the said plaintiff has been otherwise damaged.

41. That the plaintiff KEMBA MASON did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, maliciously prosecuted and deprived of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. Section 1983 and the Constitution of the State of New York.

42. That at all times hereinafter mentioned, the defendant police officers were employed in their respective capacities by the defendant CITY OF NEW YORK and were acting under the color of

their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the CITY OF NEW YORK.

43. Although defendants should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant CITY OF NEW YORK has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatsoever against their agents, servants and/or employees.

44. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff of the following rights, privileges and immunities secured to her by the Constitutions of the United States and the State of New York: The right of plaintiff to be secure in her person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the United States Constitution; the right of plaintiff to be informed of the nature and cause of the accusation against her as secured to her under the Sixth and Fourteenth Amendments to the United States Constitution; and the right of plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured to him under the Fourteenth Amendment to the United States Constitution.

45. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore and lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress, physical pain and disabilities, and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and the plaintiff will permanently suffer pain, inconvenience and other effects of injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be

unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

46. That on or about December 3, 2013, in violation of the rights, privileges and immunities guaranteed to her under the Fourteenth Amendment to the Constitution of the United States and under the color of State Law, the defendants acted individually and in concert causing the plaintiff to have been injured and damaged in an amount exceeding the jurisdictional limit of the Court, to be determined upon the trial of this action.

SECOND CAUSE OF ACTION
(FALSE ARREST AND IMPRISONMENT)

47. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs "1" through "46" with the same force and effect as if fully set forth herein.

48. That on or about December 3, 2013, in the vicinity of 45 Madison Street, Brooklyn, New York, the defendants, their agents, servants and/or employees wrongfully and falsely arrested, imprisoned and detained plaintiff KEMBA MASON, without any right or grounds therefor.

49. That on or about December 3, 2013, the defendants wrongfully accused the plaintiff KEMBA MASON of violations of Penal law Sections 205.30, 240.20, 110-120.00 and 240.26.

50. That said arrest and imprisonment was caused by the defendants, their agents, servants and/or employees without any warrant or other legal process and without authority of law and without any reasonable cause or belief that the plaintiff, KEMBA MASON, was in fact guilty of said crimes.

51. On or about December 3, 2013, the defendants and each of them acting individually and in concert and while on duty, arrested, detained and imprisoned plaintiff even though the defendants knew or should have known that the plaintiff KEMBA MASON was wholly innocent of the criminal charges then and there filed against him.

52. The defendants, their agents, servants and/or employees, wrongfully and unlawfully, against the plaintiff's wish, without reasonable or probable cause, and on the charges of violations of Penal law sections 205.30, 240.20, 110-120.00 and 240.26, arrested and imprisoned plaintiff and with full force of arms, they forcibly and violently seized, assaulted and laid hold of and compelled her to go with said police officers to be detained and imprisoned at the aforementioned police precinct, and continuing to other places and times, including, but not limited to, central booking and a detention cell in the criminal courts building where the plaintiff was further detained and imprisoned until the time that he was arraigned.

53. That at all times relevant hereto, the defendants owed a duty directly to plaintiff to conform their conduct to a standard established by law for the protection of the plaintiff.

54. That at all times relevant hereto, the defendants failed to act, safeguard and protect the plaintiff.

55. That at all time relevant hereto, the defendants breached their duty owed directly to the plaintiff which endangered the plaintiff's physical safety.

56. The defendants, their agents, servants and/or employees, acting within the scope of their authority and within the scope of their employment, detained and imprisoned the plaintiff even though the defendants, their agents, servants and/or employees had the opportunity to know or should have known, that the matters hereinbefore alleged, wrongfully, unlawfully, and without a sufficient charge having been made against the plaintiff, directed that the plaintiff be searched and placed in confinement at said locations.

57. That the plaintiff was and is wholly innocent of said criminal charges and did not contribute in any way to the conduct of the defendants, their agents, servants and/or employees and was forced by the defendants to submit to the aforesaid arrest and imprisonment thereto entirely against his will.

58. That as a result of the aforesaid accusations made by the defendants, their agents, servants

and/or employees acting under their employment and within the scope of their authority, made falsely, publicly, wickedly and maliciously, the plaintiff was compelled to a court appearance before a judge of the Criminal Court of the City of New York.

59. That the defendants, their agents, servants and employees, as set forth on the aforementioned date, time and place, intended to confine the plaintiff; in that the plaintiff was conscious of the confinement; plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

60. That by reason of the false arrest, imprisonment and detention of the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule, in being so detained, charged and prosecuted with various crimes, and greatly injured in her credit and circumstances and was then and there prevented and hindered from performing and transacting her necessary affairs and business and he was caused to suffer much pain in both mind and body, the loss of employment and the loss of employment opportunities.

61. That by reason of the foregoing, this plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

62. By reason of his false arrest and imprisonment, and the violation of the 24-hour arraignment rule, the plaintiff has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

THIRD CAUSE OF ACTION
(MALICIOUS PROSECUTION)

63. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs

"1" through "62" with the same force and effect as if fully set forth herein.

64. That on or about December 3, 2013, at approximately 11:30 a.m. of that day, while plaintiff was lawfully and properly in the vicinity of 45 Madison Street, County of Kings, City and State of New York, and at subsequent times thereafter, including but not limited to the 79th Precinct, Central Booking and at a detention cell at the Criminal Court Building, County of Kings, City and State of New York, the defendants, their agents, servants and employees maliciously prosecuted and detained plaintiff KEMBA MASON, without any just right or grounds therefor.

65. That the plaintiff was and is wholly innocent, and was forced by the defendants to submit to court proceedings.

66. That the defendants, their agents, servants and/or employees, falsely and maliciously and without probable cause or provocation charged the plaintiff with violations of Penal Law sections 205.30, 240.20, 110-120.00 and 240.26.

67. That the defendants, their agents, servants and/or employees acting in the performance of their employment and within the scope of their authority, testified falsely and withheld vital information before a Judge of the Criminal Court of the City of New York, County of New York.

68. That the said prosecution and criminal charges and hearings were instituted and procured by the defendants, their agents, servants and/or employees unlawfully and maliciously and without any reasonable or probable cause whatsoever; that the commencement and/or continuation of the criminal proceedings by the defendants against the plaintiff was without probable cause, with actual malice and was terminated mostly in favor of the plaintiff.

69. That by reason of the aforesaid unlawful and malicious prosecution, the plaintiff was deprived of her liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented

from attending his usual business and vocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

70. As a result of the aforesaid malicious prosecution, the plaintiff, KEMBA MASON has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

FOURTH CAUSE OF ACTION
(ASSAULT AND BATTERY)

71. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs "1" through "70" with the same force and effect as if fully set forth herein.

72. On or about December 3, 2013, in the vicinity of 45 Madison Street, County of Kings, City and State of New York, the plaintiff KEMBA MASON was assaulted and battered by the defendant police officers and/or others acting in concert with them.

73. The force used in the course of the arrest of plaintiff KEMBA MASON by the defendant police officers was excessive, unnecessary, unwarranted and violent.

74. As a result of the aforesaid assault and battery, the plaintiff, KEMBA MASON has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

FIFTH CAUSE OF ACTION
(COMMON LAW NEGLIGENCE)

75. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs "1" through "74" with the same force and effect as if fully set forth herein.

76. The defendant, CITY OF NEW YORK, was negligent in its operation, management, supervision and control of their Police Department; in not providing adequate training of defendant police officers while at the Police Academy; in their supervision of defendant police officers while assigned to

precincts; in failing to provide adequate supervision of defendant police officers during their training at the Police Academy.

77. The defendant P.O. JAMAAL MILLER was negligent in failing to use reasonable care in the detainment and confinement of the plaintiff, KEMBA MASON on or about December 3, 2013.

78. The defendant P.O. "JOHN DOE HO" was negligent in failing to use reasonable care in the detainment and confinement of the plaintiff, KEMBA MASON on or about December 3, 2013.

79. The defendant P.O. "JOHN DOE" was negligent in failing to use reasonable care in the detainment and confinement of the plaintiff, KEMBA MASON on or about December 3, 2013.

80. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore and lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress, physical pain and disabilities, and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and the plaintiff will permanently suffer pain, inconvenience and other effects of injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

81. By reason of the negligence of the defendants, the plaintiff, KEMBA MASON has been damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

**SIXTH CAUSE OF ACTION
VIOLATION OF INDIVIDUAL'S RIGHT TO
BE FREE FROM UNREASONABLE SEARCHES
AND SEIZURES UNDER THE CONSTITUTION**

OF THE STATE OF NEW YORK

82. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs "1" through "81" with the same force and effect as if fully set forth herein.

83. On or about December 3, 2013, in the vicinity of 45 Madison Street, Brooklyn, New York, in violation of the rights, privileges and immunities guaranteed to her under the Constitution of the State of New York, the plaintiff KEMBA MASON, was unlawfully searched and seized by the defendant police officers and/or others acting in concert with them, when said defendant police officers and/or others acting in concert with them, and each of them acting individually and in concert, while on duty, detained and searched the person and home of plaintiff KEMBA MASON, even though the defendants knew or should have known that the plaintiff was wholly innocent.

84. That by reason of the foregoing, the plaintiff was severely injured and damaged, rendered sick, sore and lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, has suffered and continues to suffer serious and extreme mental and emotional anguish, distress, physical pain and disabilities, and psychological damages and difficulties, some of which injuries are permanent in nature and duration, and the plaintiff will permanently suffer pain, inconvenience and other effects of injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to plaintiff's great damage.

85. That by reason of the unlawful search and seizure, the plaintiff, KEMBA MASON was damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

SEVENTH CAUSE OF ACTION

(DEPRIVATION OF PROPERTY)

86. Plaintiff repeats, reiterates and realleges each and every allegation set forth in paragraphs "1" through "85" with the same force and effect as if fully set forth herein.

87. On or about December 3, 2013, in the vicinity of 45 Madison Street, Brooklyn, New York, defendant police officers removed personal property belonging to the plaintiff from his home without vouchering said property for safe-keeping.

88. That by reason of the foregoing, the plaintiff was severely injured and damaged, deprived of his property and underwent financial losses due to the value of said property, all to plaintiff's great damage.

89. That by reason of the unlawful search and seizure, the plaintiff, KEMBA MASON was damaged in an amount exceeding the jurisdictional limit of this Court, to be determined upon the trial of this action.

WHEREFORE, plaintiff demands judgment against defendants on each cause of action in amounts to be determined upon the trial of this action.

Additionally, plaintiff demands in respect to all causes of action, the total additional sum of \$2,000,000.00 in punitive damages and attorney's fees pursuant to U.S.C. Section 1988.

DATED: New York, New York
April 10, 2014

Yours, etc.,

Lee Michael Huttner

LEE MICHAEL HUTTNER, ESQ.

Attorneys & Counselors At Law

Attorneys for Plaintiffs

150 Broadway, Suite 1007

New York, New York 10038

(646) 467-9700

ATTORNEY'S VERIFICATION (COMPLAINT)

STATE OF NEW YORK)
) ss:
COUNTY OF NEW YORK)

LEE MICHAEL HUTTNER, ESQ., an attorney at law duly admitted to practice in the Courts of the State of New York, affirms under the penalties of perjury as follows:

I am the attorney for the plaintiff in the above-captioned action. I have read the foregoing Amended Complaint and know the contents thereof which are true to my own knowledge, except as the matters therein stated to be alleged on information and belief, and as to these matters, I believe it to be true.

The reason this verification is made by me and not by the plaintiff is that the plaintiff resides in a county other than the one in which I maintain my office.

The source of my information and the grounds of my belief are communications with my clients and others, papers, reports, and investigation contained in the file.

Dated: New York, New York
April 10, 2014

Lee Michael Huttner

LEE MICHAEL HUTTNER, ESQ.